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****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

In today's meeting, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

****HAVING REGARD TO**** Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

****HAVING REGARD TO**** Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

****HAVING REGARD TO**** Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gdpd.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

****HAVING REGARD TO**** the documentation on file;

****HAVING REGARD TO**** the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

****REPORTING**** Dr. Agostino Ghiglia;

****PREMISES****

1. ****Introduction.****

The Authority has learned from public sources that the Municipality of Forlì (hereinafter, the "Municipality") had made available to citizens a software application, called "Falco – Città protetta," developed by FMI S.r.l. (hereinafter, "FMI" or the "Company"), which allowed citizens to send reports to the local Police regarding situations of degradation or that raised a certain level of social alarm, however not to the extent that would require an emergency call to 112.

Once a report was received, the personnel of the local Police responsible for viewing surveillance images from cameras installed in the municipal territory for urban safety purposes could monitor the situation in the specific area concerned by the report and, if necessary, send a patrol on-site to carry out checks, having temporarily acquired the GPS position and the phone number of the reporting device.

From an informational page published on the FMI website (<https://www.fmi.fc.it/falco/>), it also appeared that, following the receipt of a report, the local Police could also send drones to the area concerned to carry out the appropriate checks.

In relation to the processing of personal data of the interested parties, the Municipality qualified as the data controller, indicating FMI as the data processor (see the information on the processing of personal data published at the time on the Municipality's institutional website, at the address <https://www.fmi.fc.it/privacy-falco/#1651136340326-95cb6497-1535>), while FMI in turn qualified as the data controller (see the different information published at the time on the Company's website, at the

address <https://www.fmi.fc.it/privacy-falco>).

2. **The investigative activity.**

In response to a request for information from the Authority (see note prot. 37217 of July 8, 2022), the Municipality, in a note dated July 18, 2022 (prot. n. 0083196/2022), declared, in particular, that:

“by resolution of the Municipal Council No. 111 of 12/19/2018 and with subsequent contract No. 91 of 6/6/2019, the functions of managing the video surveillance system of the Municipality [...] were entrusted to FMI [...], [...] [the functions of] urban surveillance [...]; with] said contract, Article 39, identified FMI as the data controller for the areas of its competence”;

“by resolution of the Municipality’s Executive Board [...] No. 200 of 6/23/2021, following the transfer to FMI of the function of technological support for the design and management of video surveillance systems, ordered by the resolution of the Union of Municipalities of Romagna Forlivese No. 93/2018 [...], the definitive/executive project ‘Città Protetta 2020 – 2nd and 3rd phase’ was approved [...], drafted by [...] FMI [...] and the presentation of the same to the [competent] Prefecture was ordered, pursuant to the provisions of D.L. No. 14 of February 20, 2017 [...], [and] FMI was tasked [...] with the implementation of the aforementioned project and its subsequent management and reporting”;

“[such] project [...] includes within it the Falco application [...]. [...] [The] Falco System consists of a web application on a centralized server and an app that runs on Android and IOS (Apple) mobile devices; the latter provides both its own functionalities and those connected to the video surveillance system [...] owned by the Municipality [...], managed technologically by FMI in...”

“based on the existing agreements”;

“the app ‘Falco’, after being downloaded on a user’s mobile phone, allows individuals to verify whether they are in a monitored area or not; if so, the user can choose to send an ‘alert’ notification to the Operational Centers, highlighting [...] the camera that captures the citizen who activated the notification. This allows for an increase in the number of eyes monitoring the city, in order to report situations of degradation or that raise concern, but that do not require a call to 112, which remains the primary method for requesting immediate assistance from the Law Enforcement. Therefore, Falco does not aim to replace the function of 112 but to integrate it, allowing individual citizens to report situations that deserve to be highlighted, especially to the Local Police, increasing the perception of public safety among the population, as emphasized by the Police Chief and the Prefect during the evaluation of the project at the [Provincial Committee for Public Order and Security] [...]”;

“Falco also has a server-side application, made available to the Local Police, with which it will be possible to track all anonymized reports sent via the app on the mobile phone in order to identify which areas have more or fewer reports over time, in order to integrate the analysis of the Local Police Command regarding the areas that need more attention in the city”;

“the ‘Falco’ system does not track the paths taken by citizens, nor does it store their movements. Only in the event that a voluntary report is made by the citizen themselves, the phone number associated with the geographical coordinates (static) of the report and the timestamp is temporarily stored (for 7 days), to allow the Operational Centers to potentially contact the individual who made the report. After 7 days, the phone number associated with the coordinates is deleted from the archives, effectively fully anonymizing the data, of which only the static GPS coordinates of the report and the timestamp at which it was made will remain available for statistical purposes, without any direct or indirect reference to the individual who made it”;

“the application, as conceived and structured by FMI [...], thus constituted an integral part of a project on urban safety presented to the Committee [Provincial Committee for Public Order and Security]. In 2021, the project was approved and deemed worthy by the Technical Committee, the Prefecture, and the Police Headquarters, as a valid initiative to increase the perception of safety among citizens; it was co-financed by the Ministry of the Interior associated with other surveillance interventions in the ‘Città Protetta 2020’ project within a call for proposals for surveillance and safety in cities [...]”;

“when in 2021 the project was presented at the Prefecture, the Municipality [...] was still part of the Union of Municipalities of Romagna Forlivese for the performance of local police functions. Following the withdrawal of the Municipality of Forlì from the Union (1/1/2022) and the consequent reacquisition of local police competencies, the Municipality decided to use the Falco app to support and enhance

activities related to the local police service”;

“Falco was uploaded in beta version by FMI to the Apple and Google stores in December 2021. [...] In the beta version of April 2022, the application would have allowed the citizen only to: 1. make a report specifying its type among the categories proposed by Falco (littering, vandalism and graffiti, road accident, domestic violence, bullying, other report); 1. Make a call to 112 by pressing the corresponding button (112) with redirection to the user’s mobile keyboard. On the back-end, as previously mentioned, it was only possible to temporarily trace (for 7 days) the phone number associated with the geographical coordinates of the report and the timestamp, to allow the Operational Centers to potentially contact the individual who made the report”;

“it is specified that at this stage the Local Police did not proceed with the processing and management of any reports, except on a sample basis, and only to support FMI in the testing phase of the application, awaiting explicit directives for the Operational Center regarding 'privacy' regulation and the instruction manual of the application”;

“concurrently with the formal detachment of the Municipality [...] from the UCRF, the appointment of the [Data Protection Officer – “DPO”] was proceeded with [..., who], in April 2022, represented to the administration the urgency of accelerating the regularization of the surveillance projects and the connected Falco application. The meetings also included representatives from the FMI company [...] as the data controller”;

“[...] the entity has structured a path for alignment [for the purpose of] regularizing all processes, comprising the following steps: 1. Priority identification of the legal bases for the processing of surveillance and management of connected applications in the regulations of competence of the City Council and in any further general administrative acts (executive resolutions, managerial determinations, agreements with the UTG, etc.); 2. Detailing in the same regulation the general principles and purposes of the systems, the methods of processing, and the fundamental rights of the data subjects; 3. Referral of organizational details to secondary provisions, such as the technical regulations, a fundamental tool to provide greater...”

****Robustness of the Legal Basis;****

4. Opening of the regulatory instrument towards possible inter-force agreements and technological innovation with an assessment of involving the Prefecture in the shared use of the Falco app, given the positive evaluations received from the Public Order and Security Committee, the Prefecture, and the Police Headquarters at the time of the project's presentation in 2020, which led to the obtaining of funding from the Viminale;

5. Implementation of a risk assessment and a privacy impact assessment limited to the surveillance systems;

6. Adoption of a risk assessment and an impact assessment for the experimental Falco application, with possible activation of the preventive consultation mechanism pursuant to Article 36 [of the Regulation] in the event of [impact assessment] with a high-risk outcome;

7. Drafting of cascading acts, including appointments, training, and instructions for those authorized pursuant to Article 29 [of the Regulation], appointments pursuant to Article 28 [of the Regulation], etc.;

****In light of**** the assessments carried out with the [DPO], the Entity proceeded with the delineation of the processes responsibly following the defined timeline, starting from the primary and absolute necessity to correctly identify and delineate the legal basis for processing, which cannot be simply identified as the execution of a task of public interest or related to the exercise of public powers (Article 6, paragraphs 1, letters c) and e), and 3, of the Regulation, as well as Article 2-ter of the Code) [...];

****In one of the first fundamental meetings, held on April 26, 2022**** [...] it was decided to explicitly clarify to the interested parties through a privacy notice that the application was in the experimental phase and that this would last (at least) until May 31, 2022, with a consideration for extension;

****In the notice published on the institutional website**** [...] the Municipality [...] identified FMI [...] as the data controller [...] for the processing related to the Falco app. The normal inconsistencies found [by the] Authority due to the different notice published on the FMI website (which indicated, instead, as the Data Controller) are the litmus test of the transitional phase being experienced. To date, in fact, the

data ownership remains with the company FMI [...], as the formalization of the structural steps (sharing of processes with the Prefecture, signing of agreements, risk assessment, dedicated DPIAs, etc.) is still ongoing, at the end of which the Municipality [...] will become an autonomous data controller, within a well-defined perimeter of legal bases, purposes of processing, and consequent identification of the roles assumed by third parties, including, indeed, FMI [...] identified as the data processor [...] pursuant to Article 28 [of the Regulation]. The notice provided on the Municipality's website outlines a situation that, although formally incorrect (given that the ownership still lies with FMI), describes a hybrid situation that actually exists;

****In the same meeting of April 26, 2022**, the technical representatives of FMI were suggested to further downsize [...] “pro tempore,” the scope of the application also from a technical point of view, bringing it back to an embryonic phase. Among the requests were:**

- Reduce the retention times of reports from 7 days to 24 hours;
- Anonymize reports instantly upon arrival on the server;
- Reorganize the categories of optional reports, pending future and possible agreements with the Prefecture, limiting them to: littering, vandalism and graffiti, road accidents.
- Deactivate the “other report” button to avoid sending information potentially containing extraneous personal data that cannot be processed;

****The immediate next step was the involvement of the Council for the sharing of all processes. On July 6, 2022, with Council Resolution No. 237, the “Project for the strategic and regulatory definition of the municipal video surveillance system with license plate reading gates and new technologies dedicated to integrated urban security” was approved;****

****The technical specification, another general administrative act, is the further tool suggested by the [DPO] of the Municipality and [by an external consultant] for the further enhancement of the legality profiles of the processing;****

****Furthermore, it was also advised to involve the Prefecture - simultaneously with the presentation of the integrated urban security project and the inter-force connection - with a request for an opinion regarding the necessity or otherwise of their integration for the use of the co-financed app by the Viminale. The Prefecture of Forlì-Cesena was formally involved in the above-outlined process, following a note from the Mayor of the Municipality [...] dated 07/13/2022 [...];****

****Once these processes were implemented, with the legal basis well delineated and the impact assessment carried out, the formalization of the appointments pursuant to Article 28 [of the Regulation] (that related to the management of Falco already in possession of the Municipality in draft version), the appointments pursuant to Article 29 [of the Regulation] for those authorized to process, and the cascading acts including, very importantly, the instructions to be provided to the local police officers tasked with using the application would proceed. From April 2022 to July 2022, the Municipality [...] proceeded, therefore, to produce regulations and acts to align with current regulations;****

****On June 8, 2022, the company FMI communicated via email to the entity that the Falco application had been reactivated for the part dedicated to the possibility of sending reports. [...] The Local Police** 2022 di procedere con le modifiche necessarie per garantire la conformità al Regolamento [UE] 2016/679 (GDPR) e alla normativa nazionale sulla protezione dei dati personali”;**

“il Comune ha altresì comunicato che, a seguito delle modifiche richieste, l'applicazione Falco è stata disabilitata e non è più operativa”;

“in merito alla gestione delle segnalazioni, il Comune ha confermato che non è stata effettuata alcuna attività di trattamento dei dati personali da parte della Polizia Locale, né sono stati registrati dati personali nel sistema”;

“il Comune ha infine sottolineato che, in attesa della conclusione dell'iter di valutazione d'impatto, non verranno effettuate ulteriori operazioni di trattamento dei dati tramite l'applicazione Falco”.

****2022** [...] the immediate suspension of the application and the weighing of risks to the rights and freedoms of the interested party, with evaluations and consequent determinations that the participating company has made in full autonomy”;**

a “memorandum of understanding between the [competent] Prefecture and the Municipality [...], Prot. 80936 of 7/12/2021, concerning state funding pursuant to D.L. 20 February 2017 no. 14 [...], of the project “Forlì Città Protetta 2020”, which includes the application “Falco”.”

By note dated May 10, 2023 (prot. no. 0075074), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, as the data controller, pursuant to art. 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in art. 58, paragraph 2, of the Regulation, for having:

- acted in a manner not compliant with the principles of “accountability” and “data protection by design and by default”, in violation of arts. 5, paragraph 2 (in conjunction with art. 24) and 25 of the Regulation;
- failed to provide the interested parties with information on data processing during the period between December 2021, when the application was made available online, and April 21, 2022, and, subsequent to this period, for having provided users with incorrect information regarding some essential aspects of the processing, having acted in violation of arts. 5, paragraph 1, letter a), and 13 of the Regulation;
- failed to enter into a data protection agreement with FMI, in violation of art. 28, paragraph 3, of the Regulation;
- failed to draft a data protection impact assessment, in violation of art. 35, paragraph 1, of the Regulation;
- acted in a manner not compliant with the principle of “integrity and confidentiality” and in violation of arts. 5, paragraph 1, letter f), and 32 of the Regulation, in relation to the configuration of access methods to the computer system for managing reports.

With the same note, the aforementioned data controller was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (art. 166, paragraphs 6 and 7, of the Code, as well as art. 18, paragraph 1, of Law 24 November 1981, no. 689).

By note dated June 6, 2023 (prot. no. 0071601/2023), the Municipality submitted a defensive memorandum, stating, in particular, that:

the Municipality “has always and consistently acted in absolute good faith; any error or omission, if found, is the result of the ongoing structuring of the process [...] related to video surveillance treatments [...] [during a period in which] the Municipality found itself facing at one moment both the implementation of the Protected City project and the complete overhaul of every privacy compliance, consequent to the separation of the local police force from that of the Union, with severely reduced personnel and in the absence of the figure of the Commander of the Local Police, temporarily replaced by an interim Manager, already burdened with other significant managerial duties”;

“[...] the untimeliness of the appointment under article 28 to FMI (later formalized in August 2022) was caused by the transitory nature of this phase”;

“no personal data has ever been actually processed by the Local Police. From a substantive point of view, the damage to the rights and freedoms of citizens is virtually nil. The reports received from Falco, from the moment of the first activation on a trial basis until July 2022, including tests and functionality checks carried out largely by FMI during the verification phase, totaled 568, all anonymized as of July 11, 2022; moreover, those older than 7 days had already been previously deleted, thanks to an automatic deletion feature. From the date of reactivation on June 8, 2022 (the application was presented in a further reduced version: it is referred to previous notes, where it was illustrated that, in the absence of an agreement with the Prefecture, only three selectable options by the citizen were kept active) until July 11, 2022 (thus facing only 33 days of actual activation), only 86 reports were received by Falco, mostly consisting of tests and beta tests. According to the software reporting, none of these reports were processed by the Local Police [...]”;

“[...] the Falco app (reactivated for 33 days solely for the purpose of continuing tests) has always remained in its beta version, with the sending of reports mostly by FMI employees to test the various functionalities, and made available on the main stores solely for the purpose of evaluating the

front-end performance of the application. It is reiterated: the loading of the app in the stores did not represent its definitive activation, but was the necessary testing phase, fundamental for technically assessing the robustness of the application before the official release”;

“it is believed that the actions of the Municipality of Forlì that are subject to contestation are characterized, at most, by slight negligence, arising from the untimeliness in carrying out obligations that, in any case, were already well underway before the Authority's request for information”;

“the approval of the project by the Committee for Public Order and Security led the actors to temporarily perceive privacy obligations as secondary”;

“a long phase of in-depth 'implementation' began, starting from April 2022, [...]”

"discussion" of everything that had been accomplished up to that moment, along with the proactive collaboration of an external consultant, with the creation of a strategic operational plan aimed at implementing, within a short timeframe, all necessary obligations. Among other things, it is noted that as early as April, the Falco app was found to be inactive, at the initiative of the Municipality [...], precisely because the importance of applying privacy principles from the design phase had been strongly perceived at the municipal level”;

"it was not possible to appoint external managers without having completed the processes of defining roles and functions and without first understanding, through a specific risk assessment, what security measures to require from FMI [...], the company that created the software, before the final release of the latter”;

"[...] the Municipality ordered FMI to proceed with the deactivation of the application, starting from July 12, 2022. The negative repercussions on citizens' rights were therefore nullified with immediate effect, without delay."

3. Outcome of the investigative activity.

3.1 The processing of personal data carried out within the framework of the "Falco" project.

At the conclusion of the investigation, as reconstructed above, it emerged that, within the so-called "Falco" project, the Municipality, utilizing FMI, had created a computer system consisting of a "Web on centralized server" component and, on the user side, a specific software application for mobile devices (see note prot. no. 0083196/2022 of July 18, 2022). The software application named "Falco" allowed users to verify their presence in an area under surveillance by the Municipality, as well as to send reports regarding possible situations of degradation or generic potential risk - not such as to necessitate an emergency call - highlighting for local police operators, responsible for viewing the surveillance images, the specific footage transmitted by the camera present at the location subject to reporting.

As for the server-side application of the Falco system, it was made available to the Local Police for tracking all anonymized reports sent via the aforementioned application, in order to identify which areas had more or fewer reports over time, facilitating the analysis of the Local Police Command regarding the areas of the municipal territory that required greater monitoring. It was only possible to trace temporarily (for seven days) the phone number associated with the geographical coordinates of the report and the so-called timestamp, to allow the Operational Centers to possibly contact the user who made the report. After seven days, the phone number associated with the coordinates was deleted from the archives, with only the static GPS coordinates of the report and the timestamp when it was made remaining available for statistical purposes.

In terms of timing:

the "Falco" application was made available in the online stores "Google Play Store" on December 20, 2021, and "Apple Store" on January 26, 2022, in a version that allowed the user to send a report to the local police, without the possibility of classifying it with predefined settings; moreover, the user could activate the "keyboard" functionality of the phone preset with the number 112; reports could be voluntarily anonymized by the user by pressing a specific button, and were in any case automatically anonymized, through the deletion of the phone number associated with the static geographical position

of the terminal from which the report originated, after seven days from the date of sending it (see FMI report attached as annex 9 to note prot. no. 0003022/2023 of January 11, 2023);

on April 6, 2022, the application was modified as follows: the possibility of specifying the type of report from a predefined list of items (littering, vandalism and graffiti, traffic accident, domestic violence, bullying, other report) was introduced; the possibility for the user to anonymize their report before the seven-day period was eliminated; the possibility of attaching a photograph was introduced, but only if taken anew, i.e., without the option to choose a previously saved photo from the user's terminal (ibidem);

from the end of April 2022, the application was deactivated, only to be reactivated at the beginning of June 2022 (see report of the DPO of the Municipality attached as annex 5 to note prot. no. 0083196/2022 of July 18, 2022);

on July 11, 2022, following the initiation of the investigation by the Authority, the application was removed from online stores (see FMI report cited) and all reports received were anonymized.

It also emerged that during the normal use of the application, a request was sent to the server every 3.5 seconds containing a so-called digitally signed token, associated with the user's phone number and the static position of the device, which would be "discarded (deleted from the server's memory) after verifying the signature and its expiration date, as its purpose is solely to prevent robots from massively contacting the web service," without it being "ever stored even transiently in a database, not even in cache or temporary storage"; the static geographical coordinate was "never saved in any case; upon receiving the request to

webservice, [was] confronted with the list of monitored areas (geometric polygons saved in the database) and calculated whether it is within one of them or not. The result of this verification [was] sent to the app and the coordinates [were] deleted without ever being stored in any database, neither in support nor in transit" (see report of the FMI under annex 9 to note prot. 0003022/2023 of January 11, 2023).

Thus summarized the main characteristics of the Falco system, it is noted that the processing of personal data carried out by the Municipality, also with regard, more generally, to the management of the municipal video surveillance system, has resulted in the violation of certain provisions of the data protection legislation, which are detailed below.

3.2. The violation of the principles of accountability and data protection by design

The data controller, as the subject on whom the decisions regarding the purposes and methods of processing the personal data of the data subjects fall, bears a "general responsibility" for the processing carried out (recital 74 of the Regulation). Based on the principle of "accountability," it is, in fact, responsible for compliance with the principles of data protection (Article 5, paragraph 1, of the Regulation) and must be able to demonstrate this (Article 5, paragraph 2, of the Regulation). This also includes implementing appropriate technical and organizational measures to ensure, and be able to demonstrate, that the processing is carried out in accordance with the Regulation (Article 24, paragraph 1, of the Regulation).

In particular, considering the risk that threatens the rights and freedoms of the data subjects, the data controller must - "by design" and "by default" (Article 25 of the Regulation) - adopt appropriate technical and organizational measures to implement the principles of data protection, integrating the necessary safeguards into the processing to meet the requirements of the Regulation and protect the rights and freedoms of the data subjects (see "Guidelines 4/2019 on Article 25 - Data Protection by Design and by Default," adopted by the European Data Protection Board on October 20, 2020, especially points 42, 44, and 49).

In this specific case, as highlighted above, the "Falco" application was made available in the online stores "Google Play Store" on December 20, 2021, and "Apple Store" on January 26, 2022.

From the documentation on file, it emerges that:

- the “Falco” application was made available “in beta version” by [...] FMI, on behalf of the Municipality, although it “still needed to be tested by the company’s technicians” (note from the Municipality dated July 18, 2022, prot. no. 0083196/2022);
- already in December 2021, the DPO of the Municipality, newly appointed, during the first meetings with the representatives of the Entity, expressed “the urgency for the administration to prioritize the regularization of the video surveillance projects and the related application already active [...] called ‘Falco’.” An external professional was also involved who “confirmed the assessments expressed by the [DPO] regarding the critical issues concerning the use of video surveillance systems and the related applications lacking adequate organizational structuring” (see the report of the DPO, under annex 5 to note prot. no. 0083196/2022);
- based on the observations made by the DPO and the external consultant, the Municipality, in April 2022, planned a series of actions to ensure compliance with the data protection legislation, including the “identification of the legal bases for the video surveillance processing and management of the related applications,” the “implementation of a risk assessment and a privacy impact assessment limited to the video surveillance systems,” the “adoption of a risk assessment and a privacy impact assessment for the Falco application in testing, with possible activation of the prior consultation mechanism under Article 36 [of the Regulation] in case of [impact assessment] with a high-risk outcome” and the “drafting of cascading acts, including [...] [the] appointments under Article 28 [of the Regulation], etc.” (ibid.);
- only “once these processes are grounded, the legal basis well defined, and the impact assessment carried out” would the Municipality have “proceeded with the formalization of the appointments under Article 28 GDPR (that related to the management of Falco already in the Municipality’s possession in draft form) [...] and the cascading acts including, very importantly, the instructions to be provided to the local police officers tasked with using the application” (ibid.);
- on April 15, 2022, a meeting was held between the Municipality and the F.M.I., during which the DPO discussed the “lawfulness profiles of the app and the state of the [video surveillance] systems in general, highlighting the first evident critical issues” (ibid.);
- on April 21, 2022, the DPO, in agreement with the external consultant, sent an email to the Municipality, “confirming the urgency of the situation” (ibid.);
- despite the DPO having invited the Municipality “to exercise caution suggesting to suspend the operation of the application until the conclusion of all processes, especially the drafting of a dedicated regulation and an ad hoc [impact assessment],” the Entity first proceeded to deactivate the application and then, on June 8, reactivated it, contravening the DPO’s indications (ibid.);
- on April 22, 2022, the DPO wrote to the Municipality’s contact person “an urgent communication,” containing “a first draft of the privacy notice specifically drafted for the Falco app,” highlighting “the necessity for it to be published on the institutional website in the relevant section and that it should be clearly specified that [it] referred to an active application in the experimental phase” (ibidem); on April 26, 2022, the DPO urged “once again and more emphatically the administration to exercise caution,” suggesting “to suspend the app pending compliance with regulations and to downgrade it to an embryonic state, awaiting the definition of all processes” (ibidem); the DPO emphasized the need to “restrict the scope of application to only ‘urban security’ (excluding activities related to public safety), advising the removal of the categories ‘bullying’ and ‘violence’ from the types of reports that citizens could opt for” (ibidem); in April 2022, a “beta” version was made available, allowing citizens to “make a report specifying its type among the categories proposed by Falco (littering, vandalism and graffiti, road accidents, domestic violence, bullying, other reports)” and “make a call to 112 by pressing the corresponding button (112) with redirection to the user’s mobile keyboard,” although, at this stage, “the Local Police did not proceed with the processing and management of any reports, except on a sample basis, and only to support FMI in the testing phase of the application, pending explicit directives for the Operations Center regarding ‘privacy’ regulation and the instruction manual for the application” (ibidem); the DPO, together with the external consultant, suggested “to update the notices related to Falco again to align them with the choices made, also outlining an ideal operational timeline, including the creation of an ad hoc VDS regulation as a legal basis and the relevant regulations, the elimination of all personal data collected, and the realization of a specific DPIA” (ibidem); on April 27, 2022, the

DPO, in agreement with the external consultant, sent a "new wording to be uploaded to the website, in the section dedicated to the Falco app, highlighting the downgrading and the experimental phase" and "summarized, once again, the steps to update the notice" for both the website and the application (ibidem); on April 29, 2022, the DPO sent "an updated version of the notice" (ibidem). On April 30, 2022, the external consultant of the Municipality "outlined the path to regularize the processes, with particular attention to the Falco application" (ibidem); on May 4, 2022, the DPO warned that even if "the appointment of an external responsible party or the adoption of regulations and procedures before the approval of the regulation (legal basis) would result in a sanction in any case, as the entire privacy by design aspect was completely lacking," reiterating the need to "follow the [...] operational timeline" (ibidem); on July 6, 2022, the DPO sent a communication to the Municipality, reiterating "the suggestion to suspend the Falco App until the entire compliance process with the regulations was achieved – started, but [...] deemed nonetheless not sufficiently robust," with particular regard to "the attachment of the legal basis and the risk and impact assessment" and "consider[ed] it more prudent that the entire [video surveillance] system and the architecture of the Falco project be regularized before allowing its use by citizens." At the same time, the DPO asked an engineer to conduct "a preliminary technical assessment of the app and the related privacy risk profiles necessary for the risk assessment and impact assessment." This engineer "in addition to confirming the concerns raised, noted the high probability that a prior consultation with the Authority would need to be carried out, following a [impact assessment] that would almost certainly report a high impact on the rights and freedoms of the data subjects" (ibidem); on July 11, 2022, the DPO received "a copy of Council Resolution No. 38 of June 6, 2022, approving the [video surveillance] Regulation and Resolution No. 237 of July 6, 2022, with which the Council adopted the integrated urban security project" (ibidem); on July 11, 2022, the Municipality asked FMI to immediately disable the application. From the reconstruction of the events that occurred, it emerges, therefore, that the Municipality, starting from December 2021, made the "Falco" application available to users even though it had not yet been tested and, subsequently - despite the data protection issues highlighted on several occasions by the DPO and an external consultant starting from December 2021 and then more specifically in April 2022 (with particular regard to the lack of assessment of the applicable legal basis and the absence of internal acts of the Entity that adequately regulated the processing, the analysis of risks arising from the processing, through a prior impact assessment on data protection, the definition of relationships with the data processor, the operational instructions for those authorized to process, and the categories of personal data subject to processing) - continued to use the aforementioned application (with a break between the end of April 2022 and the beginning of June 2022), until July 11, 2022, while being fully aware of such issues. It should also be noted that, in the first version data personali, ma tale informativa non può ritenersi sufficiente a soddisfare gli obblighi di trasparenza previsti dal Regolamento, poiché non è stata fornita in modo conciso, trasparente, intelligibile e facilmente accessibile a tutti gli utenti dell'applicazione.

3.4 Il consenso dell'interessato

In base al principio di "liceità, correttezza e trasparenza", il trattamento dei dati personali deve essere basato sul consenso dell'interessato, salvo che il trattamento non si basi su un'altra base giuridica (art. 6, par. 1, lett. a), del Regolamento). Il consenso deve essere fornito in modo libero, specifico, informato e inequivocabile.

Nel caso in esame, il Comune non ha ottenuto il consenso degli utenti per il trattamento dei loro dati personali attraverso l'applicazione "Falco". Nonostante l'applicazione consentisse agli utenti di effettuare segnalazioni, non è stato fornito alcun meccanismo chiaro e trasparente per la raccolta del consenso, né sono state fornite informazioni adeguate riguardo alle modalità di trattamento dei dati.

Pertanto, si conclude che il Comune ha violato il principio di liceità del trattamento, in quanto non ha ottenuto il consenso degli interessati, come richiesto dall'art. 6 del Regolamento.

3.5 La sicurezza del trattamento

Il Regolamento richiede che il titolare del trattamento adotti misure tecniche e organizzative adeguate per garantire un livello di sicurezza adeguato al rischio (art. 32 del Regolamento). Tali misure devono

garantire la riservatezza, l'integrità e la disponibilità dei dati personali.

Nel caso in esame, il Comune non ha implementato misure di sicurezza adeguate per proteggere i dati personali trattati attraverso l'applicazione "Falco". Nonostante le segnalazioni ricevute riguardo alle criticità relative alla protezione dei dati, il Comune ha continuato a gestire i dati senza adottare le necessarie misure di sicurezza, esponendo così i dati a potenziali rischi di violazione.

In conclusione, il Comune ha agito in violazione degli obblighi di sicurezza previsti dal Regolamento, non garantendo un livello di protezione adeguato ai dati personali trattati.

4. Conclusioni

Alla luce delle violazioni sopra esposte, si raccomanda che il Comune adotti misure correttive immediate per garantire la conformità al Regolamento, inclusa l'implementazione di procedure adeguate per la raccolta del consenso, la trasparenza del trattamento e la sicurezza dei dati personali.

****Date****: April 28, 2022, which did not refer, however, to a complete text of the same. Subsequently, on May 3, 2022, a more extensive version of the notice was included in the application, which corresponds to that published on the official website of the Municipality on May 2, 2022. The notice of April 22, 2022, was not fully compliant with the requirements set forth by the Regulation (see art. 13, par. 2, lett. a). In it, it was stated that until May 31, 2022, or during a phase defined as experimental, the retention times for reports would be limited to twenty-four hours. However, this circumstance is not corroborated by the FMI report (see annex 9 to note prot. 0003022/2023 of January 11, 2023), which, regarding the Authority's request to clarify the differences, in terms of the functionality of the application, between the various versions of the same that have occurred over time, only mentions an initial version of the application from the period December 2021-January 2022 (with retention times for reports equal to seven days) and a second version released on April 6, 2022, with the same retention time of seven days (with the only disabling of the possibility for the user to anonymize their report before the end of the seven days). The same considerations apply to the subsequent version of the notice of May 2, 2022, where it is stated that, during the experimental phase of the application, which will end on May 31, 2022, "the data retention times are reset," a circumstance that is not corroborated by the aforementioned FMI report. Furthermore, neither of the two versions of the notice mentions the fact that, during the use of the application, it acquired the static geographical coordinates of the device every 3.5 seconds. In light of the preceding considerations, it must be concluded that the Municipality, during the period between December 2021, when the application was made available online, and April 21, 2022, failed to provide the interested parties with its own notice on the processing of personal data, and, subsequently, provided users with incorrect information regarding some essential aspects of the processing, having acted in violation of Articles 5, par. 1, lett. a), and 13 of the Regulation.

****3.4 The failure to define the relationships with the data processor****

Pursuant to Article 28, par. 3, of the Regulation, "the processing by a processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller, which stipulates the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, the obligations and rights of the controller," and which provides for all the commitments required by the same Article 28, par. 3, of the Regulation (see recital 81 of the Regulation). The contract or other legal act must be "in writing, including in electronic form" (Article 28, par. 9, of the Regulation). As clarified by the European Data Protection Board, "since the regulation clearly establishes the obligation to enter into a written contract, if no other relevant legal act is in force, there is a violation of the [Regulation], or of 'Article 28, paragraph 9, of the [Regulation].' Considering that 'both the controller and the processor are responsible for ensuring the existence of a contract or another legal act governing the processing,' the competent supervisory authority 'may impose an administrative fine on both the controller and the processor' ('Guidelines 07/2020 on the concepts of controller and processor under the GDPR,' adopted by the European Data Protection Board on July 7, 2021, par. 103). Therefore, where, as in this case, there is "a controller-processor relationship [...] even in the absence of a [valid] written processing agreement" - since the entity processing the data is actually processing it not for its own purposes but on behalf of the contracting entity, within the scope of an activity outsourced by it and in

the execution of a service contract or other similar legal relationship in existence between the parties (see the definition of "processor" in Article 4, par. 1, n. 8, of the Regulation) - "this implies [...] a violation of Article 28, paragraph 3, of the [Regulation]" (ibid). That said, it is highlighted that, as emerged during the investigation, the Municipality has over time entrusted FMI with the execution of a series of services, namely:

- by Municipal Council Resolution No. 333/2017, the maintenance and support activities for the management of automatic video surveillance systems for violations of the Highway Code for access to the ZTL and those for the detection of goods movement;
- by Municipal Council Resolution No. 111 of December 19, 2018, and subsequent contract No. 91 of June 6, 2019, for the management of the Municipality's video surveillance system and related urban surveillance. In this contract, FMI was identified as the "data controller for its areas of competence";
- by Municipal Council Resolution No. 200 of June 23, 2021, the maintenance of the systems and technical equipment of the systems of

****Video Surveillance to be Implemented as Part of the Project "Città Protetta 2020 – 2nd and 3rd Phase," which also Includes the Application "Falco."****

Although the FMI, in the context of providing a plurality of services for the Municipality, has processed and continues to process personal data on behalf of and in the interest of the same, thus acting as a "data processor" (art. 4, par. 1, n. of the Regulation), the Municipality has failed to enter into a contract with it regarding the protection of personal data, as required by art. 28 of the Regulation.

In this regard, it is noted that, on April 26, 2022, FMI had requested the Municipality to "be classified as an external processor pursuant to art. 28 [of the Regulation], with the consequent need to sign the appropriate appointments" (see the report of the DPO, annex 5 to note prot. n. 0083196/2022). On April 28, 2022, the DPO of the Municipality and its external consultant further highlighted the necessity that "FMI [be] classified as an external data processor" (ibidem). Furthermore, on May 4, 2022, the DPO sent "a communication to the FMI contact person, in response to their request for the appointments pursuant to art. 28, highlighting that only following the adoption of the [video surveillance] regulation [...] and all consequent acts, particularly disciplinary and DPIA, [the Municipality would] be able to proceed with the appointments." Nevertheless, as stated by the Municipality, the formalization of the agreement occurred only "in August 2022."

The Municipality, as the data controller, therefore failed, until August 2022, to enter into a data protection agreement with FMI, which - as a wholly publicly-owned company, entrusted with multiple services by the Municipality - was effectively acting as a data processor, in violation of art. 28, par. 3, of the Regulation.

****3.5 The Omitted Data Protection Impact Assessment****

In cases of high risks for the data subjects - arising, for example, from the use of new technologies - the data controller must carry out a data protection impact assessment in order to adopt, in particular, appropriate measures to address such risks, consulting the Supervisory Authority in advance, where the conditions apply (see arts. 35 and 36 of the Regulation).

In this case, the use of the application "Falco" involved the collection of data on the geographical location of users, as well as implied the possibility that, even in the case of unauthorized or unlawful access, third parties could become aware of the reports made, with possible repercussions for the data subjects, including retaliatory consequences. As illustrated above, it could not be excluded that the collection of personal data relating to crimes, which by their nature are particularly sensitive, could occur.

Therefore, although the processing resulting from the use of this application, made potentially available to all citizens, presented a high risk to the rights and freedoms of individuals, the Municipality did not draft a data protection impact assessment before commencing the processing in question (see the "Guidelines on Data Protection Impact Assessment and Determining Whether Processing is 'Likely to Result in a High Risk' for the Purposes of Regulation (EU) 2016/679," adopted by the Article 29 Working Party on April 4, 2017, WP 248 rev.01, endorsed by the European Data Protection Board with

“Endorsement 1/2018” of May 25, 2018, with particular regard to the criteria for data of a highly personal nature, such as those relating to location or whose processing may have serious repercussions on the daily life of the data subject, as well as the processing of data on a large scale).

The Municipality has, therefore, acted in violation of art. 35, par. 1, of the Regulation.

****3.6 The Security of Processing****

Art. 5, par. 1, lett. f), of the Regulation establishes that personal data must be “processed in a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage” (principle of “integrity and confidentiality”).

In application of this principle, art. 32 of the Regulation, concerning the security of processing, provides that “taking into account the state of the art and the costs of implementation, as well as the nature, scope, context and purposes of the processing, and the risk of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the data processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk [...]” (par. 1) and that “in assessing the appropriate level of security, particular consideration shall be given to the risks presented by the processing which arise, in particular, from accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored or otherwise processed” (par. 2) (see rec. 83 of the Regulation).

As a result of the investigative activity, it emerged that the local police operators of the Municipality, “in the absence of personal credentials for consulting the reports made by users, lacking a specific service provision from the Deputy Commander [...]”, accessed the data collected through the Falco application “using the

****Generic password provided by FMI****, not having, therefore, specific and personal authentication credentials to access the computer system (see note from the Local Police of the Municipality dated July 13, 2022, in the records).

Considering the nature, object, context, and purposes of the processing, which involved the acquisition and management of reports made by users, with the collection of personal data related to the reporter, such as the phone number and the device's location, it is believed that the aforementioned methods of access to the computer system cannot be considered adequate from a security perspective (cf. provision of June 10, 2021, no. 236, web document no. 9685947).

The use of non-nominal accounts by multiple subjects prevents attributing actions performed in a computer system to a specific subject, also to the detriment of the data controller and the data processor, who are effectively deprived of the ability to control the actions of subjects operating under their authority. Furthermore, when a non-nominal account, such as the one in question, is used by multiple subjects, situations may arise where there is inconsistency between the authorization profiles assigned and the actual operational needs for managing the systems, thus allowing an unauthorized subject to operate, in the absence of a specific intention from the data controller or the data processor, within the systems and processing services (see provision of April 4, 2019, no. 83, web document no. 9101974; January 14, 2021, no. 4, web document no. 9582744).

Moreover, the use of “authentication credentials exclusively used by subjects operating under its authority or that of the data processor” in the previous regulatory regime was expressly provided as a minimum security measure that all data controllers were required to adopt (pursuant to the technical regulations referred to in Annex B to the Code, in the text prior to the amendments made by Legislative Decree no. 101/2018), the violation of which also entailed the application of a criminal sanction (cf. art. 169 of the Code, in the text prior to the amendments made by Legislative Decree no. 101/2018).

For these reasons, in light of the methods of access to the computer system for managing reports, with the characteristics described above, the Municipality acted in a manner not compliant with the principle of “integrity and confidentiality” and in violation of Articles 5, paragraph 1, letter f), and 32 of the Regulation.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability pursuant to Article 168 of the Code - although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having processed personal data in violation of Articles 5, paragraph 1, letters a) and f), and paragraph 2 (in conjunction with Article 24), 12, paragraph 1, 13, 25, 28, paragraph 3, 32, and 35, paragraph 1, of the Regulation.

In this context, considering, in any case, that the conduct has exhausted its effects, the conditions for adopting further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist.

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019).

In this case, the Municipality has engaged in two distinct conducts, which must be considered separately for the purposes of quantifying the administrative sanction to be applied.

****5.1 Violations related to the processing of personal data through video devices.****

Considering that the violations of Articles 5, paragraph 2 (in conjunction with Article 24), 25, and 28, paragraph 3, of the Regulation, in relation to the processing carried out through video devices, occurred as a result of a single conduct (same processing or interrelated treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Considering that, in this case, the most serious violation concerns Article 5, paragraph 2, of the Regulation (in conjunction with Article 24), subject to the administrative sanction provided for by Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified up to €20,000,000. The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

the violation concerns the processing carried out, over an extended period, through video devices (surveillance cameras and control of access areas to ZTL), which may involve a very large number of citizens and other interested parties transiting in the municipal territory;
the investigation did not, however, reveal that they suffered specific damages as a result of such processing (cf. Article 83, paragraph 2, letter a), of the Regulation);
although the Municipality had not entered into a data protection agreement with the FMI, the latter is a single-member limited liability company with complete public participation, whose ownership is nonetheless traceable to the Municipalities belonging to the Union of Municipalities of Romagna

Forlivese, including the Municipality of Forlì; moreover, the parties had nonetheless signed a service contract, having at least generally defined the subject matter governed and the duration of the processing, the nature and purpose of the processing, the type of personal data, and the categories of interested parties (cf. Article 83, paragraph 2, letter a), of the Regulation); the violation is of a negligent nature (cf. Article 83, paragraph 2, letter b), of the Regulation); the processing did not concern personal data belonging to special categories (see Article 9 of the Regulation), it must, however, be considered that the surveillance systems, installed on public roads for the protection of urban security, may involve the processing of personal data related to crimes referred to in Article 10 of the Regulation (cf. Article 83, paragraph 2, letter g), of the Regulation), it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

the Municipality has a high degree of responsibility, having substantially failed to consider the data protection profiles underlying the processing in question, before carrying it out and from the design of the systems used (Article 83, paragraph 2, letter d), of the Regulation);

the Municipality has offered good cooperation with the Authority during the investigation, having also promptly activated to remedy the violations, even resorting to the support of the DPO and expert consultants in data protection matters (Article 83, paragraph 2, letter f), of the Regulation);

there are no previous relevant violations committed by the Municipality (Article 83, paragraph 2, letter e), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at the sum of €10,000 (ten thousand) for the violation of Articles 5, paragraph 2 (in conjunction with Article 24), 25, and 28, paragraph 3 of the Regulation, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the surveillance activity in question has involved public places, constituting a processing of personal data that “allows [to detect] the presence and behavior of people in the considered space” (European Data Protection Board, “Guidelines 3/2019 on the processing of personal data through video devices” of January 29, 2020, paragraph 2.1), without ensuring, from the design of the surveillance system, the overall respect of the principles of data protection, it is also believed that the accessory sanction of publication on the website of the Authority of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

5.2 Violations related to the “Falco” system.

Considering that the violation of Articles 5, paragraph 1, letters a) and f), and paragraph 2 (in conjunction with Article 24), 12, paragraph 1, 13, 25, 28, paragraph 3, 32, and 35, paragraph 1, of the Regulation, in relation to the processing carried out through the so-called “Falco” system, occurred as a result of a single conduct (same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation.

Considering that, in this case, the most serious violations concern Articles 5, 12, and 13, subject to the administrative sanction provided for by Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

the processing involved a limited number of interested parties compared to the total number of residents in the Municipality (approximately 116,726), given that, as stated by the Municipality during the investigation, the reports received since the first activation on a trial basis (April 2022), including numerous test evidence and...

****Functionality performed by FMI during the verification phase of the various versions of the application is n. 568, while since the date of reactivation (June 8, 2022) n. 86 reports have been received, for a total of n. 654 reports, including those for testing only (cf. art. 83, par. 2, lett. a), of the Regulation); although the Municipality had not entered into a data protection agreement with FMI, the latter is a single-member limited liability company with complete public participation, whose ownership can nonetheless be traced back to the Municipalities belonging to the Union of Municipalities of Romagna Forlivese, including the Municipality of Forlì; moreover, the parties had nonetheless signed a service contract, having at least generally defined the subject matter regulated and the duration of the processing, the nature and purpose of the processing, the type of personal data, and the categories of data subjects (cf. art. 83, par. 2, lett. a), of the Regulation); the violation is of a negligent nature (cf. art. 83, par. 2, lett. b), of the Regulation); the processing did not concern personal data belonging to special categories (see art. 9 of the Regulation), although it must be considered that, as illustrated above, it could not be completely excluded, due to the reports submitted by citizens, the processing of personal data relating to offenses referred to in art. 10 of the Regulation (cf. art. 83, par. 2, lett. g), of the Regulation), it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).**

Having said that, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account: the Municipality has a high degree of responsibility, having substantially failed to consider the data protection profiles underlying the processing in question, before carrying it out and since the design of the systems used, having, moreover, acted, starting from the reactivation of the application, in June 2022, in a manner contrary to the guidelines expressed by the DPO (art. 83, par. 2, lett. d), of the Regulation); the Municipality has offered good cooperation with the Authority during the investigation, having also promptly activated to remedy the violations, even resorting to the support of the DPO and expert consultants in data protection matters (art. 83, par. 2, lett. f), of the Regulation); there are no previous relevant violations committed by the Municipality (art. 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is believed to determine the amount of the monetary sanction at the sum of euro 5,000 (five thousand) for the violation of arts. 5, par. 1, lett. a) and f), and par. 2 (in conjunction with art. 24), 12, par. 1, 13, 28, par. 3, 25, 32 and 35, par. 1, of the Regulation, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the processing of personal data in question took place in violation of the aforementioned provisions of the Regulation for an extended period, it is also believed that the accessory sanction of publication on the website of the Authority of this provision, provided for by art. 166, paragraph 7 of the Code and art. 16 of the Regulation of the Authority n. 1/2019, should be applied.

Finally, it is noted that the conditions of art. 17 of Regulation n. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY** declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Forlì for the violation of arts. 5, par. 1, lett. a) and f), and par. 2 (in conjunction with art. 24), 12, par. 1, 13, 25, 28, par. 3, 32 and 35, par. 1, of the Regulation, in the terms stated in the motivation;**

****ORDERS** the Municipality of Forlì, in the person of the legal representative pro tempore, with registered office at Piazza Saffi, 8 - 47121 Forlì (FC), C.F. 00606620409, to pay the total sum of euro 15,000 (fifteen thousand) as an administrative monetary sanction for the violations indicated in the**

motivation.

It is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****ORDERS**** the aforementioned Municipality in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of euro 15,000 (fifteen thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of Law n. 689/1981;

****DISPOSES**** pursuant to art. 166, paragraph 7, of the Code, the publication of this provision on the website of the Authority, believing that the conditions of art. 17 of the Authority Regulation n. 1/2019 are met.

Pursuant to arts. 78 of the Regulation, 152 of the Code and 10 of Legislative Decree n. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 20, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Ghiglia

****THE SECRETARY GENERAL****

Mattei